

25VECV06553 25VECV06553

County: los-angeles

Division: Civil Law and Motion

Department: 107

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Case Number: 25VECV06553 Hearing Date: June 23, 2026 Dept: 107

SUPERIOR COURT OF THE STATE OF

CALIFORNIA

COUNTY OF LOS ANGELES

NORTHWEST DISTRICT

Stellantis

Financial Services, Inc,

Plaintiff,

v.

Jeremy

Nunley

Defendant.

Case Number Department

25VECV06553 107

COURT'S [TENTATIVE]

ORDER RE:

Motion

to Compel Arbitration and Stay Proceedings

[THE FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

Deny

I. BACKGROUND

On or about May 24, 2025, Defendants

Jeremy Nunley and Does 1 through 10 ("Defendants") purchased a 2021 Audi Q8

(the "Vehicle"). (Complaint ¶ 11.) Defendants entered into an automobile

financing agreement (the "Agreement") with Plaintiff Stellantis Financial

Services, Inc's ("Plaintiff") predecessor in interest. (Complaint ¶ 11.) The

Agreement was assigned to Plaintiff. (Complaint ¶ 12.) Plaintiff perfected its

security interest in the Vehicle by recording a lien on the certificate of

title with the California Department of Motor Vehicles / Secretary of State.

(Complaint ¶ 13.) Defendants defaulted on the Agreement by failing to make any

payments. (Complaint ¶ 17.)

On November 17, 2025, Plaintiff filed a

complaint against Defendants, alleging a possession of personal property cause

of action.

On March 12, 2026, Defendant Jeremy

Nunley (hereinafter, “Defendant”) filed a motion to compel arbitration and to stay proceedings (the “First Motion”). On April 7, 2026, the court denied the First Motion. (04/07/26 Minute Order p. 4.)

On April 27, 2026, Defendant filed another motion to compel arbitration & stay proceedings (the “Motion”). On June 9, 2026, Plaintiff filed an opposition. As of June 17, 2026, no reply has been filed.

II. LEGAL

STANDARD

The court is empowered to compel parties to arbitrate disputes pursuant to an agreement to do so. (Code Civ. Proc., §1281.2.)

“California law strongly favors arbitration ‘as a speedy and relatively inexpensive means of dispute resolution.’” (Villareal v. LAD-T, LLC (2022) 84 Cal.App.5th 446, 455.)

“[T]here is a presumption in favor of arbitrability.” (Id. at p. 456.)

“However, notwithstanding the policy favoring arbitration, because arbitration is a matter of consent, ‘a party cannot be required to submit to arbitration any dispute which he has not agreed so to submit.’” (Id.) Agreements to arbitrate are “valid, enforceable and irrevocable, save upon such grounds as

exist for the revocation of any contract.” (Id.)

“Because the existence of the

arbitration agreement is a statutory prerequisite to granting the petition, the

petitioner bears the burden of proving its existence by a preponderance of the

evidence. If the party opposing the petition raises a defense to enforcement .

. . that party bears the burden of producing evidence of, and proving by a

preponderance of the evidence, any fact necessary to the defense.” (Villareal

v. LAD-T, LLC, supra, 84 Cal.App.5th at p. 456, brackets removed.)

III. DISCUSSION

The petitioner bears the burden of

proving the existence of a valid arbitration agreement by a preponderance of

the evidence. (Villareal v. LAD-T, LLC, supra, 84 Cal.App.5th at p. 456.)

Defendant argues this action arises

from a Retail Installment Sale Contract (the “Contract”) that contains a

binding arbitration provision. (Motion p. 2.) Defendant states the Contract is

attached as Exhibit A. (Motion p. 2.) Defendant submits a declaration stating

Exhibit A is attached. (Nunley Declaration ¶ 3.) Defendant states they

“electronically signed the agreement at the time of purchase.” (Nunley

Declaration ¶ 5.)

There is document titled Retail

Installment Sale Contract attached to Defendant's declaration, but it is not labeled Exhibit A. (Motion pdf pp. 4-9.) The attached document was executed by Defendant and Knight Claremont Inc. (Nunley Declaration Ex. A pdf p. 4.) The Contract contains an arbitration provision which states, in relevant part:

Any claim or dispute, whether in contract, tort, statute or otherwise (including the interpretation and scope of this Arbitration Provision, any allegation of waiver of rights under this Arbitration Provision, and the arbitrability of the claim or dispute), between you and us or our employees, agents, successors or assigns, which arises out of or relates to your credit application, purchase or condition of this Vehicle, this contract or any resulting transaction or relationship (including any such relationship with third parties who do not sign this contract) shall, at your or our election, be an resolved by neutral, binding arbitration and not by a court action.

(Motion pdf p. 8.)

In opposition, Plaintiff argues

Defendant has not met their burden of showing an agreement between Plaintiff and Defendant exists because the financing agreement is between Defendant and Knight Claremont Inc. (Opposition p. 2.) Plaintiff also argues Defendant "fails to provide the provisions and a reference to the paragraph." (Opposition p.

2.)

Defendant does not state Plaintiff

signed the Contract or otherwise make any legal argument as to why Plaintiff,

as a non-signatory, should be compelled to arbitrate this matter under the

Contract. The court concludes Defendant has not met their burden of proving a

valid arbitration agreement exists.

IV. CONCLUSION

For the foregoing reasons, the Motion

is denied.

Dated: June 23,

2026 _____ Hon. Eric Harmon

Judge of the Superior Court